

## Common-Law Marriages

Common-law marriages between heterosexuals are recognized to some extent by fifteen states and the District of Columbia. Several of those states only recognize common-law marriages that began before a certain year. In a common-law marriage, you're considered married even though you've never gone through the formalities. There are four requirements:

1. You have to live together.
2. You have to present yourself as a married couple, for instance by using the same last name or referring to your partner as your husband or wife.
3. You must intend to be married.
4. You must live together for a significant number of years.

The number of years it takes before you're considered married by common law is not clearly defined in any of the fifteen states that recognize common-law marriages (New Hampshire only recognizes common-law marriage in relation to inheritance rights should either party pass away). There's also no simple way to determine if you're married by common-law, and it usually only comes up if you have to go to court for a legal matter related to your relationship. Common-law marriage is not something you should rely on to give you any kind of legal protection.



There's a common misperception that if you live together for seven years you're married by common law. No states specify a minimum number of years. Instead, they specify criteria they would qualify you as being "married." For example, if you live together and tell everybody you're married, you might qualify.